

25STCV14880 25STCV14880

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Case Number: 25STCV14880 Hearing Date: August 14, 2026 Dept: 735

Usman Shaikh v. Craft Design America

et al.

Motion to Quash Service of Summons

On

May 21, 2025, Plaintiff Usman Shaikh filed a complaint against, among others, Defendant Sevan Avedian. Plaintiff filed a proof of personal service, indicating that Defendant was served with the summons and complaint on January 21, 2026, at 11:30 am at 12818 Woodcock Avenue, in Sylmar, California. (1/22/26 Proof of Service.)

Defendant

Avedian moves to quash service of the summons. Defendant argues that he does not reside at the address listed above, and he was not present at the property on the date service was allegedly made. (Avedian Decl., ¶¶ 2-3.)

He further avers that he was not the person who service was allegedly made upon. (Id., ¶4.) Defendant also submits an attachment, which he argues shows his location at the date and time service was made, which shows he was in North Hills, California.

Ordinarily

Defendant's mere denial that process occurred without more would not be sufficient to rebut the presumption of proper service. But Evidence Code § 647 establishes that the return of a registered process server establishes a presumption of service.

Here, the proof of service

indicates the process server was not registered. Thus, the rebuttable presumption that service was proper does not apply. Therefore, Defendant's

filing of this motion to quash places the burden on Plaintiff to show that the Court has jurisdiction over Defendant.

Plaintiff

does not show that the service was proper. Plaintiff argues that since Avedian received actual notice of the Summons and Complaint, "the statutory provisions regarding service of process should be liberally construed to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant." Defendant's knowledge of the action does not dispense with statutory requirements for service of summons. However, as long as the defendant receives actual notice of the lawsuit, substantial compliance with the Code provisions governing service of summons will generally be held sufficient. Here, there was no evidence of substantial compliance.

Plaintiff

also argues that Defendant's GPS information is questionable. In Reply, Defendant submits the declaration of Norvik Manookian Ghaghani to corroborate his argument that on January 21, 2026, at 11:30 am (the date and time in the proof of service), Avedian was not at the address in the proof of service. Ghaghani declares that on January 21, 2026, Avedian arrived at Arno Cars, Inc. located at 8846 Sepulveda Boulevard in North Hills, CA, at 10:20 am and stayed until 11:15 am. (Ghaghani Decl., ¶¶ 1, 3.) At approximately 11:15 am, Ghaghani personally watched Avedian leave the shop on foot to go to a nearby mechanic shop where his car was being repaired. (Id., ¶ 4.) Based on the foregoing, Defendant's motion to quash is granted.

The court denies without prejudice Plaintiff's request in Plaintiff's opposition to recover costs under Code of Civil Procedure section 415.30(d). Plaintiff may seek, if Plaintiff so desires, their recovery by noticed motion.

CONCLUSION

The

court grants Defendant's motion to quash service of summons. The court denies without prejudice Plaintiff's request for costs.

Plaintiff shall give notice.